

Before the
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-23

MARINE TRANSPORT LOGISTICS, INC.
v.
CMA CGM, S.A.

RESPONDENT’S PROPOSED FINDINGS OF FACT

Respondent CMA CGM, S.A. (“CMA”), through its counsel, hereby submits the following Proposed Findings of Fact (“RPFFs”) and states as follows.

1. Background

- RPFF1. CMA CGM, S.A. (“CMA”) is a vessel-operating common carrier (VOCC) as defined by 46 U.S.C. § 40102(7). Respondent’s Answer, p. 2.
- RPFF2. CMA is a common carrier that is privately owned and organized under the laws of France with its principal place of business at 4 Quai d’Arenc, 13215 Marseilles Cedex 02, France. *Id.*
- RPFF3. CMA’s agent in the United States is CMA CGM (America) LLC (“CCA”) with offices at 1 Meadowlands Plaza, Suite 201, East Rutherford, NJ 07073 and 1 CMA CGM Way, Norfolk, VA 23502. *Id.*
- RPFF4. CMA provides ocean transportation of property between the United States, including *inter alia*, the Port of New York, and foreign ports. *Id.*

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- RPFF5. Marine Transport Logistics, Inc. (“MTL”) is a corporation organized under the laws of the state of New York, with a place of business at 63 New Hook Road, Bayonne, NJ 07002, a place of business at 172 Baekeland Avenue, Middlesex, NJ 08846, and a place of business at 300 West Service Road, Staten Island, NY 10314. RX1 at 21:17-19; RX2 at 17:9-18.21
- RPFF6. MTL is principally owned by Alla Solovyeva. RX2 at 16:15-19.
- RPFF7. MTL is a non-vessel operating common carrier (NVOCC), freight forwarder, and ocean transportation intermediary as defined by 46 U.S.C. § 40102(17), (19), and (20). RX1 at 21:1-2, 30:1-6; RX2 at 69:19-21.
- RPFF8. MTL has one overseas office, located in Odesa, Ukraine that was established in 2018.¹ RX1 at 23:1-6.
- RPFF9. MTL’s primary business is the shipping of used automobile exports from the United States. RX1 at 23:7-11.
- RPFF10. MTL acted as an NVOCC and freight forwarder of U.S. export cargo shipped by ocean and destined for, *inter alia*, Ukrainian and Russian ports, including the Port of Odesa, until February 2022. RX1 at 24:6-20.
- RPFF11. CMA has transported cargo for MTL for years, pursuant to a series of service contracts filed at the FMC. RX2 at 69:19-70:4.
- RPFF12. The FMC-filed service contract between MTL and CMA in effect from August 1, 2021 through July 31, 2022 was Service Contract 21-1782. RX3 (confidential).

¹ The correct spelling of this historic Ukrainian Port is properly “Odesa.” “Odessa” is the archaic Soviet-era spelling. See, <https://mfa.gov.ua/en/correctua>.

- RPFF13. CIS Development Foundation, Inc. (“CIS”) is a 501(c)(3) non-profit organization with a principal place of business at 77 Mill Town Road, Suite A2, East Brunswick, New Jersey, 08816. RX4 (Bondarev Deposition) at 11:8.
- RPFF14. CIS’s principal activities are sending humanitarian assistance to recipients located in Tajikistan, Ukraine, Estonia, Latvia, and Moldova. *Id.* at 11:21-12.2
- RPFF15. Maria Bondareva is the President of CIS. *Id.* at 11:12.
- RPFF16. Garry Pogil, Esq., MTL’s attorney, represented CIS in the deposition of Ms. Bondareva in this proceeding. *Id.* at 8:5-20.
- RPFF17. CIS’s President estimated that CIS ships approximately 40 containers annually from the United States to Ukraine. *Id.* at 12:8-11.
- RPFF18. Ms. Bondarev testified that CIS did not provide its attorney, Mr. Pogil, with any documents in response to Respondent’s subpoena. *Id.* at 10:21 – 11:4.

2. Ukraine Shipments

- RPFF19. Between December 28, 2021 and February 17, 2022, MTL booked shipments bearing bills of lading nos. NAM4996094; NAM4887650; NAM4887651; NAM5020932; and NAM4887632 with CMA CGM for transportation from Maher Terminal at the Port of New York to Odesa, Ukraine (the “Ukraine Shipments”). RX5 (NAM4996094); RX6 (NAM4887650); RX7 (NAM4887651); RX8 (NAM5020932) and RX9 (NAM4887632); and RX3 Service Contract No. 21-1782 (confidential).
- RPFF20. The containers identified in the Complaint as comprising the Ukraine Shipments were:

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1. Booking No. NAM4996094, Container No. UETU5251612, aboard the La Traviata, on February 17, 2022; *See* RX5 (CMA 2145-2148);
2. Booking No. NAM4887650, Container No. SEGU6471959, aboard the Dalila, on January 22, 2022; *See* RX6 (BOL NAM4887650);
3. Booking No. NAM4887651, Container No. UESU5180789, aboard the Vienna Express, on January 31, 2022; *See* RX7 (Dock Receipt NAM4887651);
4. Booking No. NAM5020932, Container No. TRLU7542206, aboard the La Traviata, on February 13, 2022; *See* RX8 (Dock Receipt NAM5020932); and
5. Booking No. NAM4887632, Container No. TGBU5073710, aboard the Chicago Express, on December 28, 2021; *See* RX9 (BOL NAM4887632).

- RPFF21. The contracts of carriage applicable to each Ukraine Shipment included: (1) the applicable CMA tariff provisions (RX15); (2) CMA's standard bill of lading terms and conditions (RX16); and (3) Service Contract No. 21-1782 (RX3)(confidential).
- RPFF 22. On February 24, 2022, the Ukraine Shipments were on the water, at different locations, depending on the vessel, heading to Odesa. RX10 (Ristic Deposition) at 20:7-8.
- RPFF23. On February 24, 2022, Russia invaded Ukraine. *See, e.g.,* RX1 (Privalova Deposition) at 24:6-14; United Nations News, Focus: Ukraine, available at: <https://news.un.org/en/focus/ukraine>.
- RPFF24. On February 24, 2022, the International Maritime Organization and the North Atlantic Treaty Organization issued warnings to vessels in the Black Sea. RX11.
- RPFF25. On February 24, 2022, the Government of Ukraine announced that as of February 26, 2024, all Ukrainian seaports on the Black Sea (including Odesa) would be closed to commercial vessel traffic. RX12.
- RPFF26. The Russian invasion of Ukraine caused disruptions to global trade second only to those caused by COVID. *See* Remarks by Senator John Carper, Chairman, Senate Subcommittee on International Trade, Hearing on Customs and Global

Competitiveness, Senate Committee on Finance (May 21, 2024) (available at: <https://www.finance.senate.gov/hearings/examining-trade-enforcement-and-entry-of-merchandise-at-us-ports>).

- RPFF27. The amount MTL claims to have charged to its customer, alleged to be CIS, for the shipment of the five Ukraine Shipments totaled \$11,525.00. RX1 (Privalova Deposition) at 79:2-12; RX2 (Solovyeva Deposition) at 208:22-209:3; CX27A.
- RPFF28. On February 24, 2022, when Russia invaded Ukraine and it was announced that the Port of Odesa would be closed, CMA published a public notice to its customers saying “The CMA CGM Group has been closely monitoring the situation in Ukraine and the Black Sea region. Over the past several days, we have taken all necessary measures to protect our employees and ensure as much as possible the continuity of the supply chain. The safety of our employees and their families in Ukraine is our main focus. We are thankful to report that at the moment all of them are safe. As part of our business continuity plan, they will be working from home until further notice. Our security team will be monitoring developments 24/7 to ensure constant contact with them. In the interest of safety, the Group has decided to suspend all vessel calls to Ukraine as of today and until further notice.” RX13 The advisory also informed the shipping public that “floating cargo to Ukraine will be redirected to the ports of Constanza (Romania), Tripoli (Lebanon) or Piraeus (Greece).” *Id.*
- RPFF29. MTL learned of the closure of the Port of Odesa by notices from ocean carriers. RX2 at 51:1-4.

- RPFF30. When it was announced that the Port of Odesa would be closed as of February 26, 2024, all CMA ships bound for Odesa were diverted to other destinations. RX10 at 20:7-8.
- RPFF31. The Ukraine Shipments were diverted to the Port of Constanta, Romania. *Id.*
- RPFF32. CMA was authorized to make these diversions under the terms and conditions of the applicable contracts of carriage, which are comprised of the applicable tariff, service contract, and bill of lading terms and conditions. *See supra*, RPFF21.
- RPFF33. Term 10 of CMA's bill of lading terms and conditions is a type of provision (sometimes referred to as a "deviation clause" or "liberties clause") commonly used in shipping. *Id.*
- RPFF34. Under the applicable contracts of carriage, CMA could have required MTL to take delivery of the Ukraine Shipments at Constanta. *Id.*
- RPFF35. Some customers, including MTL, requested that the cargo diverted to Constanta be transported to alternate final ports of delivery. Complainant's Exhibit 1.
- RPFF36. CMA immediately began efforts to process such requests. RX20.
- RPFF37. The re-routing of cargo from Constanta to other ports required a change of destination request ("COD") from the shipper. RX15 (CMA_1282-1285).
- RPFF38. In some cases, because the original consignee may have been in Ukraine, some shippers also requested a change of consignee ("COC"). Complainant's Exhibits 18, 19.
- RPFF39. If the applicable service contract had no rate on file for the routing from Constanta to the new place of delivery (POD), a new rate had to be negotiated, agreed between

CMA and the customer, and filed in an amendment to the applicable service contract. RX15.

RPFF40. The application for a COD or COC was required by CMA CGM's tariff to include certain elements, including an administrative fee to cover the additional work by CMA to process the COD, a commitment to pay the revised rate necessitated by the re-routing and rehandling. RX15.

RPFF41. It is "very rare" for MTL to request a change in destination. RX2 at 59:1-9.

RPFF42. The Service Contract stated, [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] RX3 (confidential).

RPFF43. The Bill of Lading, Term 10 stated, in part, "If at any time the Carriage is or likely to be affected by any hindrance, risk, delay, difficulty or disadvantage of any kind...and howsoever arising...the Carrier...may, without prior notice to the Merchant and at the sole discretion of the Carrier, either: [...] abandon the Carriage of the Goods and place the Goods at the Merchant's disposal at any place or port which the Carrier may deem safe and convenient, whereupon the responsibility of the Carrier in respect of such Goods shall cease." RX16.

- RPFF44. The Bill of Lading, Article 11(6) stated, “In the event the Carrier agrees, at the request of the Merchant, to amend the Place of Delivery stated herein, the Terms and Conditions of this Bill of Lading shall continue to apply, only to the extent provided by the Applicable Tariff, until the Goods are delivered by the Carrier to the Merchant at the amended Place of Delivery. If the Applicable Tariff does not explicitly provide for the continued application of the Terms and Conditions of the Bill of Lading then the Carrier shall act as agent only to the Merchant in arranging for delivery of the Goods to the amended Place of Delivery but shall then be under no liability whatsoever for loss, damage or delay to the Goods, howsoever arising.” RX16.
- RPFF45. The CMA Tariff Rule required any request for a COD to be received “no later than two working days prior to the vessel's arrival at the interchange port. The Carrier will endeavor to satisfy the request but will not be responsible if the diversion cannot be effected. Customs authorities/local regulations at some destinations may require that diversions be effected earlier than two working days. In such instances it is the Shipper's responsibility to comply with such regulations. Fines resulting from failure to comply will be for the account of the cargo.” RX15.
- RPFF46. Between March 3 and March 25, 2022, MTL, through Account Manager Julia Privalova, requested a Change of Destination (“COD”) for each of the five Ukraine Shipments, from Odesa to Bremerhaven, “due to the ongoing war in Ukraine.” RX17 (CMA_133); RX19 (CMA_188); RX1 (Privalova Deposition) at 62:17-64:11.

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RPFF47. Consistent with the applicable published tariff, CMA's autoreply email to Ms. Privalova stated, in red capital letters:

****PLEASE NOTE THE BELOW INFORMATION FOR ALL COD
REQUESTS****

- All COD requests are subject to approval and are not guaranteed.” RX20 (CMA_82).

RPFF48. On March 15, 2022, CCA worked to find new routings, applicable rates, and asked local agents to confirm the deadline for the requested diversion for Booking No. NAM4887632 and was able to update the booking on April 28, 2022. RX21 (CMA_68-CMA_76)(confidential). As of April 1, 2022, the bill of lading was locked and the Diversions Team continued to work on the COD. *Id.* (CMA_69)(confidential). On April 28, 2024, the booking was updated. *Id.* (CMA_68)(confidential).

RPFF49. On March 25, 2022, Ms. Privalova also requested that CMA change the consignee on the bills of lading for the Ukrainian Shipments from the original consignee, Andrey Kodryanka in Odesa, to either FavoritPlus (for NAM4887632) or Interfracht (for NAM4996094, NAM5020932, NAM4887650, and NAM4887651) in Bremerhaven. RX22; RX18 (CMA_146); RX17 (CMA_133).

RPFF50. In connection with its COD requests, MTL was advised that it would be responsible for “additional costs, not covered under service contract rate” including “i.e., storage charges, customs fines, etc.” for each of the Ukraine Shipment containers. RX17(CMA_128); RX18 (CMA_142); RX23 (CMA_173).

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- RPFF51. MTL agreed to be responsible for all such charges related to its COD requests when Ms. Privalova wrote back, “Confirmed, please proceed.” RX17 (CMA_122); RX18 (CMA_139).
- RPFF52. The Ukraine Shipments were discharged at Bremerhaven on June 8, 2022. RX28 (CMA_2152)
- RPFF53. Following arrival at Bremerhaven, the consignee named by MTL, Interfracht, refused to take delivery of containers under shipments NAM5020932, NAM4887650, NAM4887651, and NAM4996094. RX24 (CMA_1217-1220)
- RPFF54. Interfracht claimed that MTL placed Interfracht as consignee on those four shipments without approval or confirmation from Interfracht. *Id.* at CMA_1217, CMA_1220.
- RPFF55. As of July 15, 2022, MTL was aware of the rejection and was “looking for a solution.” RX24 (CMA_1220).
- RPFF56. On July 22, 2022 Interfracht, the new consignee designated by MTL for four of the Ukraine Shipments (NAM4996094, NAM5020932, NAM4887650, and NAM4887651), sent letters of renouncement to CMA, disclaiming any interest in the cargo and stating that Interfracht had been “placed as Consignee without their approval.” RX29 (CMA_1153).
- RPFF57. On July 27, 2022, CMA representative Antwaun Majors emailed MTL, “[T]he consignee sent in letters of renouncement. Can you please check and confirm with them if they are still accepting cargo?” RX30 (CMA_1006).

- RPFF58. On August 2, 2022, CMA having received no response to this July 27, 2022 email, CMA's Andre Ristic again asked MTL "Can you please check and confirm with them [Interfracht] if [they] are still accepting cargo?" *Id.* at CMA_1004.
- RPFF59. MTL responded on August 2, 2022, that Interfracht "will accept the cargo if all charges are removed." *Id.* at 1003.
- RPFF60. In order to facilitate the delivery, CMA waived in advance all storage, detention and demurrage charges with respect to each of the five Ukraine Shipments. RX31 (CMA_519); RX32 (CMA_520); RX29 (CMA_1129); RX2 (Solovyeva Deposition) at 153:11-14, 166:4-6, 180:18-181:2.
- RPFF61. On August 8, 2022, Ms. Solovyeva requested CMA forward all charges at destination to MTL. RX1 (Privalova Deposition) at 66:1-21.
- RPFF62. MTL was not required to pay detention, demurrage or storage charges for any of the Ukraine Shipments. RX27; RX28; RX31; RX32; RX33; RX2 at 153:11-14, 166:4-6, 180:18-181:2. See also, RPFFs 109-119.
- RPFF63. On September 5, 2022, CMA's agent in Germany reported that all containers were picked up by Interfracht (September 3-4), and CMA waived ("rejected" in CMA's LARA system) all demurrage and detention charges that had accrued. RX35 (CMA_1164).
- RPFF64. The Ukraine Shipments idled at Bremerhaven for 87 days due to MTL's designated consignee refusing to accept delivery of the containers. RX35; RX28.

3. Rolled Shipments

- RPFF65. MTL's complaint also references three containers (the "Rolled Shipments") which were shipped by MTL via CMA and which were rolled² to a later vessel by CMA:
1. Booking No. NAM3933751, Container No. TCNU3475181, to be loaded at the Port of New York and destined for El Khoums, Libya; RX36 (CMA 516-518);
 2. Booking No. NAM4588370, Container No. BMOU5265030, to be loaded at the Port of New York and destined for Odesa, Ukraine; RX37 (CMA 1286 – 1287); and
 3. Booking No. NAM5194626, Container No. FFAU4420241, to be loaded at the Port of New York and destined for Riga, Latvia; RX38 (CMA 529-531).

i. Libya Jet Ski Shipment

- RPFF66. Booking NAM3933751 involved a shipment of a container containing used cars and a jet ski to be loaded at the Port of New York, and delivered to El Khoums, Libya, with an intermediate transshipment at Valetta, Malta. RX36. Booking No. NAM3933751, Container No. TCNU3475181, to be loaded at the Port of New York and destined for El Khoums, Libya; RX36, CMA 516-518;
- RPFF67. The jet ski in the container was a 2004 Yamaha jet ski. *Id.*
- RPFF68. The CMA Booking Confirmation for this shipment stated, *inter alia*, "For Automobile Shipments, if the container is received at the port and fails to meet any customs requirements. . . the booking will be rolled and applicable charges will be assessed." RX39 (CMA_163).
- RPFF69. EU Council Regulation 2017/1325, of July 17, 2017, amended EU Council Regulation 2016/44, which imposed restrictive measures on transportation of cargo

² Rolling cargo, which may be necessary for a number of reasons, is the process of delaying the loading of a container from the anticipated vessel to a later vessel.

from EU member states to Libya, adding motor and inflatable boats to the list of items for which prior authorization was required for transport to Libya. RX40.

RPFF70. EU Council Regulation 2017/1325 covered jet skis within the term “motor and inflatable boats.” *Id.*

RPFF71. EU Council Regulation 2017/1325 applied to transshipment to Libya through EU member states equally as to cargo shipped from an EU member state to Libya. *Id.*

RPFF72. This EU Regulation was in effect in 2020 when MTL delivered the container for Booking NAM3933751, which included the jet ski, to CMA at the Port of New York. RX36 (CMA_518).

RPFF73. Booking NAM3933751 was originally scheduled to sail from New York on June 23, 2020. CX39.

RPFF74. CMA Export Control flagged the shipment due to the EU regulation on jet skis. RX41 (CMA_926-CMA_937).

RPFF75. On June 19, 2020, CMA informed MTL that the shipment would have to be rolled, stating that, “Boats [such as the jet ski] are restricted or sensitive as per EU regulation on Libya as they are used to human beings trafficking and smuggling,” so the shipment would need to be rolled. *Id.*

RPFF76. Later that day, on June 19, 2020, MTL responded, “There are no boats in the container. We loaded 3 cars and a jet ski.” *Id.*

RPFF77. On June 22, 2020, CMA confirmed that, “Per Malta customs, Jet skis fall under the same category.” *Id.*

RPFF78. Because of the EU rules, CMA rolled Booking NAM3933751 from its expected sailing on June 23, 2020. *Id.*

- RPFF79. Had CMA loaded and transported the container with the jet ski in it, the entire container would have been rejected by Customs at Malta, subject to additional storage and handling costs at the terminal there, then required to be either abandoned, returned to the U.S. or shipped to a destination other than Libya, all at MTL's expense. CMA Tariff Publication provides that "Except as otherwise provided, this tariff does not provide for returned cargo. All returned cargo will be handled as regular shipments, and rates quoted will be those in effect at the time of the return cargo." RX42 (CMA Tariff Rule 018).
- RPFF80. On June 26, 2020, MTL reached out to CMA about this container, saying, "Subject booking was rolled by mistake." RX43 (CMA_953).
- RPFF81. MTL took no other action with respect to this container at that time. *Id.*
- RPFF82. Booking NAM3933751 was by necessity rolled again in July 2020, as it still contained the illicit jet ski. *Id.* at CMA_950.
- RPFF83. On August 7, 2020, CMA's Account Manager for MTL, Andre Ristic, responded to an inquiry from MTL and explained that "MTL was twice made aware that jet skis would not be accepted effective immediately on the automatic notice & my notice which were sent before both rolls occurred." *Id.* at CMA_948-CMA_949.
- RPFF84. Mr. Ristic offered at that time to discount MTL's accrued detention and demurrage charges for this shipment but stated that "CMA cannot absorb [extra drayage / unstuffing / re-loading charges] for any customers as this was not a CMA decision to reject this cargo. It was EU mandate." *Id.*
- RPFF85. MTL has not shipped any jet skis to Libya since 2022. RX2 (Solovyeva Deposition) at 40: 7-9.

ii. **2022 Rolled Shipment**

- RPFF86. Booking No. NAM5194626 involved the shipment of used automobiles bound for Riga, Latvia, in March of 2022 that CMA rolled. RX44.
- RPFF87. CMA canceled all invoices for charges associated with the rolling. RX44 (CMA_47595).

4. **Ongoing Business**

- RPFF88. Although neither MTL nor CIS produced any documents corroborating this testimony, both CIS and MTL's Julia Privalova testified that MTL continues to do business with customer CIS. RX4 (Bondarev Deposition) at 13:3-7; RX1 (Privalova Deposition) at 34:16-22.
- RPFF89. CIS' Maria Bondarev testified that Consignee Kodryanka continues to do business with CIS. RX4 (Bondarev Deposition) at 15:18-16:9. Neither MTL nor CIS have produced any documentation corroborating this testimony, nor is there any in the record.
- RPFF90. Also according to CIS's Bondarev, CIS exports an average of just under two hundred shipments annually. RX4 (Bondarev Deposition) at 20:13-21.
- RPFF91. Also according to Ms. Bondarev, of those estimated two hundred yearly CIS shipments, Kodryanka is the consignee for approximately fifteen containers annually. *Id.* (Bondarev Deposition) at 15:20-16:9.
- RPFF92. Bondarev testified that CIS continues to do business with MTL. *Id.* at 13:3.
- RPFF93. Bondarev testified that CIS continues to work with Kodryanka. *Id.* at 15:18.
- RPFF94. CIS no longer sends cargo to Odesa. *Id.* at 19:3-4.

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- RPFF95. MTL almost doubled its business with CMA between fiscal years 2022 and 2023, with almost 2,400 TEU moved on behalf of MTL by CMA in 2023. RX10 (Ristic Deposition) at 40:12-25.
- RPFF96. On January 31, 2024, the Presiding Officer ordered MTL to produce “MTL’s Federal and state tax returns for each of the most recent 3 years and financial statements for 2019-2021.” Order at p. 7.
- RPFF97. MTL did not produce any documents in response to the January 31, 2024 Order.
- RPFF98. No documents reflecting MTL’s profits or losses were produced by MTL in response to discovery requests.
- RPFF99. No expert testimony was offered by MTL regarding its profit or losses.
- RPFF100. MTL’s owner, Alla Solovyeva, refused to provide testimony regarding MTL’s profits when asked about it at deposition. RX2 (Solovyeva Deposition) at 239: 9-21.
- RPFF101. Following her deposition, Ms. Solovyeva executed an affidavit purporting to attest to matters she was either unable or unwilling to testify to in her deposition, including MTL’s profits.
- RPFF102. Ms. Solovyeva refused to provide testimony regarding when MTL had last filed a Federal tax return. RX2 at 237: 4-13.
- RPFF103. Ms. Solovyeva testified that she did not know what MTL’s net profits were for either 2020 or for 2023. *Id.* at 238: 9-15
- RPFF104. Ms. Solovyeva testified “...my taxes and my profit, it has nothing to do with the CMA and the four containers in Bremerhaven, absolutely not.” *Id.* at 239:9-21.

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- RFPP105. When asked at deposition about how MTL arrived at a figure of \$600,000 in reparations for the Amended Verified Complaint, which she signed, Ms. Soloyeva testified "...I can make billions, and we cannot say what percentage of the billions was [lost business from Kodryanka]." *Id.* at 243:9 - 244:2.
- RPFF106. Following her deposition, Ms. Solovyeva executed an affidavit purporting to attest to matters she was either unable or unwilling to testify to in her deposition, including calculation of MTL's alleged damages.
- RFPP107. CMA requested MTL's financial statements repeatedly in discovery.
- RFPP108. MTL was compelled to produce financial statements by an Order of the Presiding Officer.
- RFPP109. MTL never produced any type of financial records in response to CMA's discovery requests. Indeed, on February 15, 2024, in response to CMA's Requests for Production of Documents, MTL's counsel stated that "the tax returns or other financial documents would not capture these nuances." RX45.
- RFPP110. MTL never produced any type of financial records in response to the Presiding Officer's Order.
- RFPP111. MTL never produced any type of financial records as a part of its required initial disclosures.
- RFPP112. On December 20, 2023 (confirmed via email dated December 22, 2023), counsel for MTL represented that financial records and information would be provided by Ms. Solovyeva in deposition testimony, that later took place on January 27, 2024.
- RPFF113. CIS was properly served with a subpoena on December 29, 2023 directing it to produce "If not otherwise included in response to Request for Production 1, all

documents, records, and communications that have been exchanged with, presented to, shared with, obtained by, or given to any component part, owner, agent, or employee of MTL, including but not limited to Alla Solovyeva and Julia Primalova, between January 1, 2019 and December 31, 2022.”

- RPFF114. CIS never produced any documents as required by the subpoena for documents signed by the Presiding Officer in this Proceeding.
- RPFF115. CMA filed a petition seeking an order enforcing the subpoena in the Federal District Court for the District of New Jersey. That proceeding is still pending.
- RPFF116. No document in the record reflects MTL’s gross profits for the year 2021.
- RPFF117. No document in the record reflects MTL’s gross profits for the year 2022.
- RPFF118. No document in the record reflects MTL’s gross profits for the year 2023.
- RPFF119. MTL did not pay any detention or demurrage to CMA related to the Ukraine Shipments.

1. Settlement of Claims

- RPFF120. On January 21, 2020, Ms. Solovyeva agreed on behalf of MTL to [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] The Confidential Settlement was filed with the Federal Maritime Commission and was approved by both the ALJ and the FMC in FMC Docket No. 18-07.
- RPFF121. On July 14, 2020, CMA issued a Credit Note to MTL for basic freight, bunker surcharges NOS, and change of vessel or destination, including roll over charges

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on NAM39333751/TCNU3475181 in the amount of (\$2,034.00). RX46 (CMA_1398).

RPFF122. On July 26, 2022, CMA issued a Credit Note to Lat Fast Logistics on NAM5194626 for equipment detention and demurrage import in the amount of (EUR190.00). RX47 (CMA_2150).

RPFF123. On September 12, 2022, CMA issued a Credit Note to MTL for basic freight and bunker surcharge NOS on NAM4997632/TGBU5073710 in the amount of (\$474.00). RX48 (CMA_1582).

RPFF124. On September 12, 2022, CMA issued a Credit Note to MTL for basic freight and bunker charges on NAM4996094/UETU5251612 in the amount of (\$934.00). RX31 (CMA_519).

RPFF125. On September 12, 2022, CMA issued a Credit Note to MTL for basic freight and bunker surcharges on NAM4887651/UESU5180789 in the amount of (\$934.00). RX32 (CMA_520).

RPFF126. On September 12, 2022, CMA issued a Credit note to MTL for basic freight and bunker charges on NAM3887632/TGBU5073710 in the amount of (\$474.00). RX33 (CMA_711).

RPFF127. On September 22, 2022, CMA issued a Credit Note to Interfracht on NAM4887650/SEGU6471959 for equipment detention and demurrage import in the amount of (EUR11,940.00). RX28 (CMA_2152)

RPFF128. On September 22, 2022, CMA issued a Credit Note to Interfracht on NAM5020932/TRLU7542206 for equipment detention and demurrage import in the amount of (EUR12,210.00). RX27 (CMA_2152).

PUBLIC VERSION- Confidential Material
Excluded

- RPFF129. On January 18, 2023, CMA issued a Credit Note to MTL for equipment export demurrage charges on NAM5194626 / FFAU4420241 in the amount of (\$3,010.00). RX50 (CMA_2216).
- RPFF130. On February 5, 2024, CMA issued a Credit Note to MTL for storage at transshipment ports full container and restowage of NAM4887632/TGBU5073710 in the amount of (\$2,028.00). RX34 (CMA_95417).
- RPFF131. With respect to the invoice referenced in Complainant's PFF14, [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] RX51 (CMA_95432 -CMA_95435)(confidential).
[REDACTED]
[REDACTED]
[REDACTED] *Id.*

DATED: June 12, 2024

Respectfully submitted,



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CERTIFICATE OF SERVICE

I certify that on the 12th day of June 2024, a true and correct copies of the foregoing **Proposed Findings of Fact** was served by electronic mail on all counsel of record in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020 as follows:

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